

STATE OF NEW YORK

6370--B

2025-2026 Regular Sessions

IN SENATE

March 11, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the transportation law, in relation to a state transportation plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 15 of the transportation law, subdivision 2 as
2 amended by chapter 524 of the laws of 2005 and subdivision 3 as amended
3 by chapter 1064 of the laws of 1969, is amended to read as follows:
4 § 15. Comprehensive statewide master plan for transportation. 1. The
5 department shall formulate [~~and from time to time revise~~] a long-range
6 comprehensive statewide master plan for the balanced development and
7 coordination of adequate, safe and efficient commuter and general trans-
8 portation facilities and services in the state at reasonable cost to the
9 people, including, but not limited to, state and local highways[~~7~~] and
10 bridges under the jurisdiction of the commissioner, bicycle and pedes-
11 trian facilities on such state highways and bridges, rapid transit,
12 freight and passenger railroad, omnibus, marine and other mass transpor-
13 tation facilities and services, excluding rapid transit, railroad, omni-
14 bus, marine and other mass transportation facilities and services under
15 the jurisdiction of either the metropolitan transportation authority as
16 defined in section two hundred nineteen-c of this chapter or a bi-state
17 public benefit corporation, and public use aviation and airport facili-
18 ties and services[~~7~~] whether publicly or privately owned, developed,
19 operated or maintained, excluding airports operated by a bi-state public

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 benefit corporation. Such plan shall include a minimum twenty-year
2 forecast period at the time of adoption, assess long-range needs span-
3 ning such period, include a forecast of pavement and bridge conditions
4 of state and local highways and bridges under the jurisdiction of the
5 commissioner, and take into consideration:

6 a. the most recent twenty-year transportation plan adopted by each
7 metropolitan planning organization within the state pursuant to subpart
8 C of part 450 of title 23 of the code of federal regulations; and

9 b. the most recent long-range statewide transportation plan and state-
10 wide transportation improvement program developed by the state pursuant
11 to subpart B of part 450 of title 23 of the code of federal regulations.

12 2. The department shall submit such plan to the governor, the tempo-
13 rary president of the senate, the speaker of the assembly and to the
14 department of state on or before September first, [~~nineteen hundred~~
15 ~~sixty-eight, and thereafter shall submit appropriate revisions of such~~
16 ~~plan~~] two thousand twenty-seven. The department shall review and update
17 such plan at least every five years to extend the forecast period to at
18 least twenty years, provided that the department may revise such plan at
19 any other time without extending such forecast period. The department
20 shall submit all such revised and updated plans to the governor, the
21 temporary president of the senate, the speaker of the assembly and to
22 the department of state [~~from time to~~] at the time [~~as~~] such revisions
23 are made. The department of state shall review such plan and such
24 revisions and shall submit a report thereon, together with such recom-
25 mendations as it may deem appropriate, to the governor, the temporary
26 president of the senate and the speaker of the assembly. Such plan and
27 such revisions shall become effective upon approval by the governor
28 [~~and~~], shall serve thereafter as a guide to the public and publicly
29 assisted development of transportation facilities and services in the
30 state, and the department shall maintain hard copies of the most recent
31 version of such plan and revisions thereto on file as a public document
32 in the office of the commissioner and at each regional office of the
33 department.

34 3. In formulating such plan and any such revisions, the department:

35 a. shall conduct [~~one or more~~] at least one public [~~hearings~~] hearing
36 in each department region;

37 b. may consult with and cooperate with (i) officials of departments
38 and agencies of the state having duties and responsibilities concerning
39 transportation;

40 (ii) officials and representatives of public corporations as defined
41 in [~~article one, section three of the general corporation~~] section
42 sixty-five of the general construction law;

43 (iii) officials and representatives of the federal government, of
44 neighboring states and of interstate agencies on problems affecting
45 transportation in this state;

46 (iv) officials and representatives of carriers and transportation
47 facilities and systems in the state; and

48 (v) persons, organizations and groups utilizing, served by, interested
49 in or concerned with transportation facilities and systems in the state;

50 c. may request and receive from any department, division, board,
51 bureau, commission or other agency of the state or any political subdi-
52 vision thereof or any public authority such assistance and data as may
53 be necessary to enable the department to carry out its responsibilities
54 under this section; and

d. may make use of and incorporate in the department's plan, any recognized long-range regional plan for transportation, survey or report developed by any public or private agency.

4. The department shall maintain on its public website the proposed and adopted long-range comprehensive statewide master plan and all proposed and adopted revisions thereto, and shall provide a means on such website for the public to submit comments thereon to the department.

§ 2. Subdivision 13 of section 14 of the transportation law, as added by chapter 420 of the laws of 1968, is amended to read as follows:

13. To report from time to time to the governor and make an annual report to the governor and the legislature which shall include its recommendations. Additionally, the commissioner shall submit a report to the governor, the temporary president of the senate, and the speaker of the assembly, beginning September first, two thousand twenty-seven and semi annually thereafter, including a list of those capital projects in the department's capital program that have experienced major schedule changes or major cost changes in letting schedule or construction cost, including projects that were eliminated and projects that were added, since the adoption of the most recent state budget. For each project the report shall include the project identification number and description, original and revised letting dates, original and revised construction costs, and a detailed explanation of why the changes occurred. For the purposes of this subdivision, the term "major schedule changes" is defined as a twelve-month or more delay in the letting date of a project, and the term "major cost changes" is defined as one of the following as applicable: a greater than fifty percent change for projects fifteen million dollars or less, and a greater than twenty-five percent change for projects in excess of fifteen million dollars.

§ 3. This act shall take effect immediately.